

Children in education and Universal Credit

What counts as education

- A full-time advanced course such as University, NVQ level 4 or above
- A course for which a loan or grant is paid for maintenance.
- A “qualifying young person” aged between 16 and the 31st August after their 19th birthday
- In full time non advanced education, school, or college course where child benefit is payable on a course accepted or enrolled onto before their 19th birthday.

If a child counts as receiving education, they will find it difficult to claim Universal Credit.

Who can get Universal Credit?

Whether students qualify depends on their circumstances, including what type of student income they have.

Students eligible for Universal Credit:

- A student who is responsible for their own child
- A young person in non-advanced education aged under 21, or who turned 21 on their course without parental support, including children whose parents cannot support them because they are disabled.
- Disabled students who get Disability Living Allowance or Personal Independence Payment, if they have been awarded a limited capability for work before the course started. If the course ends, they can claim Universal

Credit, but they must have a limited capability for work decision before starting a new course.

- Part-time students whose course is 12 hours or less per week. Different rules apply to home education.
- Young people who remain in full time non advanced education after the August after their 19th birthday should be able to claim Universal Credit, as long as their course is not incompatible with any work-related conditions attached to their Universal Credit claim.

Establishing a limited capability for work and work related activity

This is through a DWP medical assessment or Work Capability Assessment. If a person is awarded limited capability for work- and work-related activity (LCWRA) they cannot have any work related conditions attached to their Universal Credit claim.

Limited capability for work- and work-related activity can be established whilst a person is still in education. If they stay in non-advanced education after the August following their 19th birthday, having a limited capability for work- and work-related activity means they are exempt from work related conditions that may make their claim and their course incompatible.

If a person already has an award of Personal Independence Payment, establishing a limited capability for work- and work-related activity early will help them claim Universal Credit if they decide to start a new course. It will also safeguard their future choices.

To start the limited capability for work process, a claim for New Style Employment and Support Allowance should be made.

There will be no entitlement to this as no National Insurance Contributions will have been paid and it will be classed as 'credits only'. This means there will be no payment, however National Insurance Contributions will be credited and will count towards a State Pension in the future.

Having a claim to New Style Employment and Support Allowance will trigger a Work Capability Assessment and will require a fit note from a GP to support the claim.

Following assessment, the Department for Work and Pensions will decide if there is a limited capability for work- and work-related activity, this will then apply to the Universal Credit claim when this is made.

Applying for New Style Employment and Support Allowance will not affect any Child Benefit already being received.

If a person can manage their own affairs, they can make a claim for New Style Employment and Support Allowance from the Government Website www.gov.uk

If a person needs an appointee for benefits purposes, a claim cannot be made online and must be made by calling the Helpline on 0800 055 6688.

Once a claim for New Style Employment and Support Allowance has been made, the claimant will get a decision explaining that they do not qualify for the benefit. This is to be expected as the claim is for 'credits only', however the claim will remain live and the work capability assessment should still be triggered.

A questionnaire will be sent to complete. If this is not received in a couple of weeks one can be requested by calling 0800 169 0310.

It can take several months for the assessment to be completed and you should take this into account when applying.

If you need any further help or information on this you will find our contact information below.

Contact information

Phone: 0300 500 80 80

Monday - Friday, opening times may vary.

Calls are charged at local rate.

Email: enquiries@nottsc.gov.uk Website:

www.nottinghamshire.gov.uk

Minicom: 01623 434993

Phone 0300 500 80 80 if you need the information in a different language or format.

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at: <https://www.nottinghamshire.gov.uk/global-content/privacy>